

Quickwrks Customer Portal Terms and Conditions

Effective Date: [Insert date]

Last Updated: [Insert date]

These Customer Portal Terms and Conditions (“Portal Terms”) govern access to and use of the Quickwrks customer portal (“Portal”). The Portal is operated by **Quickwrks** (“Quickwrks,” “we,” “us,” or “our”) for customers whose service requests have been accepted and governed by a separate written service agreement.

By accessing or using the Portal, you agree to these Portal Terms. If you do not agree, you must not use the Portal.

1. Purpose of the Portal

The Portal may allow an approved customer to:

- View service status and progress.
- Review services and project information.
- Communicate with Quickwrks.
- View and download invoices.
- Make payments.
- Receive documents, deliverables, and service-related information.
- Upload information or files where the functionality is enabled.

The Portal is provided for managing and administering the customer’s service relationship with Quickwrks and the relevant subsidiary or service provider.

2. Relationship with the service agreement

The separate written customer service agreement remains the primary document governing the specific project or service.

These Portal Terms govern Portal access, account security, communications, payments through the Portal, uploaded materials, and use of Portal functionality.

If there is a conflict between these Portal Terms and the signed customer service agreement, the customer service agreement will prevail regarding the specific service, project, price, deliverables, timelines, ownership, refund, cancellation, or other commercial terms.

3. Eligibility and authorised access

Portal access is available only to:

- The customer who has entered into a service agreement with Quickwrks or the relevant service provider; or
- A person expressly authorised by the customer and accepted by Quickwrks.

The customer is responsible for ensuring that the Portal is used only by authorised persons.

One customer account is intended for use by one authorised customer user. The customer must not share the username, password, access link, or other credentials with another person without Quickwrks' prior written permission.

Quickwrks may access the customer account where reasonably necessary to only when customer asks to:

- Provide customer support.
- Maintain or secure the account.
- Investigate suspected compromise or misuse.
- Manage the service relationship.

4. Account credentials

Quickwrks allows customer to make their own username, password, or other credentials for Portal access but only once.

The customer is responsible for:

- Keeping credentials confidential.
- Using a secure password.
- Preventing unauthorised access.
- Logging out where appropriate.
- Not sharing credentials.
- Immediately reporting anything suspicious.

All activity carried out through the customer's account may be attributed to the customer unless the customer promptly reports unauthorised access and Quickwrks reasonably confirms the compromise.

5. Lost or compromised account

If a customer loses access credentials or believes that the account has been compromised, the customer must notify Quickwrks immediately using the official contact details displayed on quickwrks.com.

Quickwrks may temporarily suspend access, reset credentials, require identity verification, or issue replacement credentials.

The standard charge for replacement of lost, damaged, or compromised access credentials is ₹500, unless a different charge is agreed in writing.

Quickwrks cannot guarantee recovery of an original password or restoration of an account exactly as it existed before a compromise. Where necessary, Quickwrks may create replacement access after completing reasonable security checks.

6. Portal communications and approvals

Messages exchanged through the Portal may constitute official business communications between the customer and Quickwrks.

A customer approval, instruction, confirmation, acceptance, or acknowledgement submitted through the Portal may be treated as written approval for operational matters, including:

- Confirmation of requirements.
- Approval of drafts or work stages.
- Acceptance of documents.
- Confirmation of instructions.
- Approval to proceed with an agreed task.

However, Portal messages do not replace a formal written contract where the law, Quickwrks, the relevant subsidiary, or the customer service agreement requires a signed contract, amendment, statement of work, or other formal document.

For material changes to scope, price, ownership, liability, cancellation, or other contractual obligations, the parties must execute the required written contract or amendment.

7. Documents and deliverables

Quickwrks or the relevant subsidiary may upload documents, invoices, drafts, reports, deliverables, approvals, and other project materials to the Portal.

The customer is responsible for reviewing uploaded materials within a reasonable time and notifying Quickwrks of any apparent error or omission.

The customer must download and retain copies of important documents, invoices, approvals, and deliverables because Portal availability and stored content cannot be guaranteed indefinitely.

8. Customer-uploaded materials

The customer retains ownership of materials uploaded by the customer unless the customer service agreement provides otherwise.

The customer grants Quickwrks, its subsidiaries, and authorised service providers a limited, non-exclusive permission to access, store, reproduce, transmit, modify, and use uploaded materials only as reasonably necessary to:

- Provide the contracted services.
- Manage the project.
- Communicate with the customer.
- Create deliverables.
- Maintain records.
- Secure and operate the Portal.

The customer confirms that it has the necessary rights and permissions to upload and share the materials.

The customer must not upload material that is unlawful, defamatory, fraudulent, malicious, infringing, or unrelated to the project.

9. Ownership of project work

The ownership and permitted use of project work, deliverables, designs, documents, software, reports, content, or other materials created during a project will be governed by the applicable customer service agreement.

Quickwrks will manage the customer relationship after project completion, while the relevant subsidiary or service provider may manage project execution as specified in the applicable contract.

No ownership or licence is transferred merely because a file is uploaded to or downloaded from the Portal. Ownership transfer, if any, will occur only in accordance with the applicable written agreement and payment conditions.

10. Payments

The Portal may provide access to invoices, payment instructions, payment status, and online payment facilities.

Payments may be processed through a separate wallet, payment gateway, or other authorised payment provider selected by Quickwrks.

Quickwrks may not store complete card or bank-account credentials on the Portal. Payment information may be processed and retained by the relevant payment provider under its own terms and privacy policy.

The customer must provide accurate payment information and must not use another person's payment instrument without proper authority.

A payment will be treated as completed only after confirmation is received from the relevant payment provider or Quickwrks.

11. Late payment

If an amount remains unpaid for more than **10 days** after its due date:

1. Quickwrks may send a payment reminder.
2. The reminder may provide an additional deadline of **two days**.
3. If payment remains outstanding, Quickwrks may contact the customer by telephone or another direct communication method.
4. If the amount remains unpaid after these steps, Quickwrks may suspend or close the Portal account and pause, suspend, or terminate the relevant services, subject to the customer service agreement and applicable law.

Any late-payment fee, interest, recovery cost, or other financial consequence must be stated in the customer service agreement or invoice.

12. Account suspension

Quickwrks may immediately impose a temporary or “soft” suspension of Portal access where reasonably necessary because of:

- Suspected hacking or account compromise.
- Unauthorised access.
- Security concerns.
- Misuse of the Portal.
- Violation of these Portal Terms.
- Unpaid amounts.
- Unlawful or harmful activity.
- A legal, regulatory, or operational risk.

A soft suspension may restrict login or selected Portal functions while allowing Quickwrks to investigate, communicate with the customer, preserve information, or restore access.

Quickwrks may restore access after the issue is resolved and any required verification or payment is completed.

13. Account closure and deletion

Portal access may be closed in the following circumstances:

- The customer’s contract is completed.
- The customer’s contract is cancelled or terminated.
- The account is compromised or hacked.
- The customer fails to pay after the stated reminder and communication process.
- The customer materially breaches these Portal Terms or the service agreement.
- The Portal relationship is otherwise ended lawfully.

Portal data may be deleted only in accordance with Quickwrks' retention obligations and applicable law. Subject to those obligations, Quickwrks may delete Portal data after hacking, cancellation, or completion of the contract.

The customer should download all required invoices, communications, approvals, and deliverables before account closure.

Deletion may not apply to information Quickwrks must retain for accounting, legal, tax, security, dispute-resolution, audit, or contractual purposes.

14. Prohibited activities

The customer must not:

- Attempt to access another customer's account.
- Share or sell Portal access.
- Circumvent security controls.
- Upload malware or harmful code.
- Interfere with Portal operation.
- Scrape, copy, reverse engineer, or reproduce the Portal.
- Use the Portal for unlawful activity.
- Submit false or misleading information.
- Upload content that infringes another person's rights.
- Use Portal communications to impersonate another person.
- Attempt to manipulate payment records or invoices.

15. Portal availability

Quickwrks will make reasonable efforts to keep the Portal available, but does not guarantee continuous or uninterrupted operation.

The Portal may be unavailable because of maintenance, upgrades, security measures, internet failures, hosting issues, payment-provider issues, technical failures, or events outside Quickwrks' reasonable control.

Quickwrks may change, restrict, suspend, or discontinue Portal features where reasonably necessary.

16. Security and privacy

Quickwrks will take reasonable technical and organisational measures to protect Portal information.

The collection, use, storage, sharing, and retention of personal data through the Portal are governed by the Quickwrks Customer Dashboard Privacy Policy and the general Quickwrks Privacy Policy.

The customer must also take reasonable steps to protect its own devices, email accounts, network, and credentials.

17. Intellectual property

The Portal, its design, software, layout, databases, text, graphics, branding, and related technology belong to Quickwrks or its licensors.

The customer receives a limited, non-exclusive, non-transferable right to use the Portal for its authorised business relationship with Quickwrks.

The customer must not copy, modify, distribute, sell, licence, reverse engineer, or commercially exploit the Portal or Quickwrks' intellectual property without prior written permission.

18. Disclaimer

The Portal is provided on an "as available" basis to the maximum extent permitted by applicable law.

Portal status information, estimates, notifications, and project updates may change as work progresses. Unless expressly stated in the service agreement, Portal information does not replace the formal contractual terms governing the project.

Quickwrks does not guarantee that the Portal will be error-free, continuously available, or free from unauthorised access.

19. Limitation of liability

To the maximum extent permitted by applicable law, Quickwrks will not be liable for indirect, incidental, special, consequential, or business losses arising from:

- Unauthorised use caused by the customer's failure to protect credentials.
- Customer-uploaded content.
- Temporary Portal unavailability.
- Payment-gateway or wallet failure.
- Loss caused by failure to download important documents.
- Deletion permitted under these Portal Terms or the service agreement.
- Acts or omissions of third-party providers.

Nothing in these Portal Terms excludes or limits liability that cannot legally be excluded or limited under Indian law.

Any liability specifically connected with the contracted service will be governed by the applicable customer service agreement.

20. Dispute resolution

If a dispute arises concerning the Portal, the customer and Quickwrks will first attempt to resolve it through direct communication.

The parties may exchange written explanations, hold a telephone call, or conduct another reasonable discussion before commencing formal proceedings.

If the dispute cannot be resolved through direct communication, these Portal Terms will be governed by the laws of India, and the courts having jurisdiction in **Uttar Pradesh, India**, will have jurisdiction, subject to any mandatory legal rights or dispute-resolution provisions in the customer service agreement.

21. Changes to these Portal Terms

Quickwrks may update these Portal Terms when the Portal, services, security requirements, payment process, or applicable law changes.

Updated terms may be displayed in the Portal or published on quickwrks.com. Continued use of the Portal after the updated terms become effective may constitute acceptance of the revised terms, to the extent permitted by law.

22. Contact

For account, payment, security, or Portal-related concerns, customers should use the official contact details displayed on quickwrks.com and in the Website footer.

Quickwrks

Website: quickwrks.com

Customer acceptance checkbox

Use this checkbox when activating the Portal:

I have read and agree to the Quickwrks Customer Portal Terms and Conditions and acknowledge that my use of the Portal is also subject to the applicable customer service agreement and Quickwrks Privacy Policy.

Use a separate optional checkbox if you want marketing consent:

I agree to receive marketing communications from Quickwrks. I understand that I may withdraw this consent at any time.

